

The defendant shall serve and produce all OSI and SAGA documents requested no later than August 14, 2026.

No later than August 14, 2026, the defendant shall supplement its responses by producing a privilege log supporting all documents the production of which are being withheld on the ground of attorney-client privilege. Any objections not supported by the privilege log are overruled.

Analysis:

At the initial hearing on 6-14-26, the Court ordered the parties to meet and confer regarding Nos. 1-11, 13-29, and 30, and thereafter to file a joint statement regarding any disputes that remain.

The joint statement states that the defendant agreed in March to provide documents regarding Other Similar Incidents and SAGA warranty claims in May and continues to represent that it will provide those documents now, but still has not done so. The defense says that its agreement to provide them renders this issue moot. Until those documents are produced rather than simply promised, the issue is not moot. The defendant objected to Nos. 14-30 on the ground of attorney-client privilege, but has not produced a privilege log. The defendant continues to assert that privilege, but it still has not produced a privilege log.

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CASE #	CASE NAME	HEARING NAME
CVRI2506485	WU vs BRINKER RESTAURANT CORPORATION	MOTION TO STRIKE COMPLAINT ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The defendant's unopposed motion to strike portions of the First Amended Complaint is granted without leave to amend.

Analysis

The plaintiff did not oppose the motion and has proposed to amend the complaint by, inter alia, omitting all allegations regarding punitive or exemplary damages. (See motion for leave to file second amended complaint, pp. 2 & 9.) Since those allegations are being deleted, the instant motion is granted without leave to amend.